

1.

CASE #	CASE NAME	HEARING NAME
CVRI2401982	BUSTOS vs GOLDEN STATE K-9 TRAINING ACADEMY	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Defendants argue the court lacks jurisdiction because the court dismissed the case. Pursuant to CCP § 581, subdivisions (b) and (c), plaintiffs have the right to voluntarily dismiss an entire action, or causes of action within a pleading, before the commencement of trial. A request for a dismissal is usually effective upon filing, and no other action by the clerk or the court is required. (*Aetna Casualty & Surety Co. v. Humboldt Loaders, Inc.* (1988) 202 Cal.App.3d 921, 931.) “Neither the clerk nor the trial court has any discretion in the matter. [Citation.]” (*O'Dell v. Freightliner Corp.* (1992) 10 Cal.App.4th 645, 659.) Upon the proper filing of a request to voluntarily dismiss a matter, the trial court loses jurisdiction to act in the case, “except for the limited purpose of awarding costs and statutory attorney fees.” (*Gogri v. Jack in the Box Inc.* (2008) 166 Cal.App.4th 255, 261.) “[A]ll subsequent proceeding [are] void.” (*Aetna Casualty, supra*, at p. 931; *Gogri, supra*, at p. 261.) Because this is a motion for the award of statutory attorneys’ fees, the court retains jurisdiction despite the dismissal.

Although the motion is timely (see *Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454 and Cal. Rules of Court, rule 3.1702), the parties agreed to dismiss the entire case on the condition that each party would bear its own attorneys’ fees and costs. A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts. (See, e.g., *Gorman v. Holte* (1985) 164 Cal.App.3d 984, 988.) The “consent” must be “mutual.” (Civ. Code § 1565.) “Consent is not mutual, unless the parties all agree upon the same thing in the same sense.” (Civ. Code § 1580 and 1636 [contracts must be enforced according to the “mutual intention of the parties as it existed at the time of contracting.”].) “The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe.” (*Meyer v. Benko* (1976) 55 Cal.App.3d 937, 943.)

Here, there is an email from 6/28/2026 from counsel for Defendants stating that, “My clients have advised that they will agree to both sides dismissing their respective claims with prejudice and each party to bear their own attorney’s fees and costs.” (Defendants’ Appendix of Exhibits, Exhibit E.) Counsel for Plaintiff responds, “My client similarly has instructed me to dismiss the case rather than incur any additional fees....Neither party will then be considered the prevailing party entitled to costs...” (*Id.*) Each email indicates that the parties themselves agreed to a dismissal with prejudice in exchange for a waiver of fees and costs. Counsel for Plaintiff then outwardly manifests consent by attaching a request for dismissal. Counsel for both parties signed the request for dismissal, filed it, and the court entered dismissal thereupon.

Plaintiff argues the lack of a signed settlement agreement prevents enforcement, but this is not a motion to enforce a settlement agreement pursuant to CCP § 664.6. The outward, objective conduct indicates that the parties agreed to dismiss this case only if each party would bear their own attorney's fees and costs.

Plaintiff also argues that the emails regarding the agreement to dismiss the case are inadmissible under Evidence Code § 1154. This argument is without merit. Evidence Code § 1154 only applies when a party is offering settlement offers to "prove the invalidity of the claim or any part of it." For example, when a party attempts to argue damages should be reduced because of a pre-litigation settlement offer that is lower than what is being sought at trial. Evidence Code § 1154 is not applicable here where the emails reflect the actual agreement between the parties and are being offered to prove that said agreement exists – not the "invalidity" of a claim.

The court denies the motion as the objective, outward manifestations of conduct by the parties indicate an agreement to dismiss the entire action on the condition that each party bears its own attorneys' fees and costs.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507217	LENARD vs AMAZON.COM SERVICES, LLC	APPLICATION TO APPEAR PRO HAC VICE

Tentative Ruling:

The motion is granted. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 10, 2026, by 5:00 p.m.